

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER
143011-26-0011

PAGE 1 OF 29

2. CONTRACT NUMBER

3. AWARD/EFFECTIVE DATE

4. ORDER NUMBER

5. SOLICITATION NUMBER
1305M326Q0093

6. SOLICITATION ISSUE DATE

04/21/2026

7. FOR SOLICITATION INFORMATION CALL:

a. NAME

MONICA COWDREY

b. TELEPHONE NUMBER (No collect calls)

(303) 578-9148

8. OFFER DUE DATE/ LOCAL TIME

05/05/2026 1700

9. ISSUED BY

CODE

WAD-NMFS-B

WAD-NMFS-Boulder
325 BROADWAY, SOU6
BOULDER CO 80305

10. THIS ACQUISITION IS

☒ SMALL BUSINESS

☐ HUBZONE SMALL BUSINESS

☐ SERVICE-DISABLED

☐ VETERAN-OWNED

☐ SMALL BUSINESS (SDVOSB)

☐ UNRESTRICTED OR

☐ WOMEN-OWNED SMALL BUSINESS (WOSB)

☐ ECONOMICALLY DISADVANTAGED

☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB)

☐ 8(A)

☒ SET ASIDE: **100.00%** FOR:

NORTH AMERICAN
INDUSTRY CLASSIFICATION
STANDARD (NAICS):

334511

SIZE STANDARD:

1350

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED

☐ SEE SCHEDULE

12. DISCOUNT TERMS

13a. THIS CONTRACT IS A
☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)

13b. RATING

14. METHOD OF SOLICITATION REQUEST
☒ REQUEST ☐ INVITATION ☐ FOR
FOR QUOTE (RFQ) FOR BID (IFB) PROPOSAL (RFP)

15. DELIVER TO

CODE

FKAE6131

DOC NOAA IRC
NMFS/OLE/PID F/EN6
1845 WASP BLVD, BLDG 176
HONOLULU HI 96818

16. ADMINISTERED BY

CODE

17a. CONTRACTOR/ OFFEROR

CODE

FACILITY CODE

18a. PAYMENT WILL BE MADE BY

CODE

TELEPHONE NUMBER

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Continued... (Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT (For Government Use Only)

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. ADDENDA FAR 52.212-3 AND 52.212-5 ARE ATTACHED.

☒ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA

☐ ARE ☐ ARE NOT ATTACHED

☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED: _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)

30b. NAME AND TITLE OF SIGNER (Type or print)

30c. DATE SIGNED

31b. NAME OF CONTRACTING OFFICER (Type or print)

31c. DATE SIGNED

KRISTEN PICARIELLO

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
0001	Period of Performance: 07/01/2026 to 06/30/2031 Base Year - NMFS & WCPFC type-approved VMS units (EMTUs) IAW Statement of Need Quantity: 30 Units Call Order will be issued as Firm Fixed Price during the duration of the Period of Performance. Period of Performance 07/01/2026 - 6/30/2027	30	EA		
0002	Base Year - Shipping and Delivery of VMS units (EMTUs) IAW Statement of Need Quantity: 30 Units Firm Fixed Price Call Orders will be issued as FFP at any time during the duration of the Period of Continued...				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED☐ INSPECTED☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

40. PAID BY

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42a. RECEIVED BY (Print)

42b. RECEIVED AT (Location)

42c. DATE RECEIVED (MM/DD/YYYY)

42d. TOTAL CONTAINERS

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
1001	Performance. Delivery Dates: 07/01/2026 - 6/30/2027 Option Year 1 - Quantity: Up to 30 Units; NMFS & WCPFC type-approved VMS units (EMTUs) IAW Statement of Need. Call Orders will be issued as FFP at any time during the duration of the Period of Performance. Period of Performance 07/01/2027 - 6/30/2028 (Option Line Item)	30	EA		
1002	Option Year 1 - Optional Quantity: 5 Units; NMFS & WCPFC type-approved VMS units (EMTUs) IAW Statement of Need Firm Fixed Price Call Orders will be issued as FFP at any time during the duration of the Period of Performance. Period of Performance 07/01/2027 - 6/30/2028 (Option Line Item)	5	EA		
1003	Option Year 1 - Quantity: 30 Units; Shipping and Delivery of VMS units (EMTUs) IAW Statement of Need Firm Fixed Price Call Orders will be issued as FFP at any time during the duration of the Period of Performance. Delivery Dates: 07/01/2027 - 6/30/2028 (Option Line Item)				
2001	Option Year 2 - Quantity: 30 Units; NMFS & WCPFC type-approved VMS units (EMTUs) IAW Statement of Need Firm Fixed Price Call Orders will be issued as FFP at any time during the duration of the Period of Performance. Period of Performance 07/01/2028 - 6/30/2029 (Option Line Item) Continued...	30	EA		

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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
2002	Option Year 2 - Optional Quantity: 5 Units; NMFS & WCPFC type-approved VMS units (EMTUs) IAW Statement of Need Firm Fixed Price Call Orders will be issued as FFP at any time during the duration of the Period of Performance. Period of Performance 07/01/2028 - 6/30/2029 (Option Line Item)	5	EA		
2003	Option Year 2 - Quantity: 30 Units; Shipping and Delivery of VMS units (EMTUs) IAW Statement of Need Firm Fixed Price Call Orders will be issued as FFP at any time during the duration of the Period of Performance. Delivery Dates: 07/01/2028 - 6/30/2029 (Option Line Item)				
3001	Option Year 3 - Quantity: 30 Units; NMFS & WCPFC type-approved VMS units (EMTUs) IAW Statement of Need Firm Fixed Price Call Orders will be issued as FFP at any time during the duration of the Period of Performance. Period of Performance 07/01/2029 - 6/30/2030 (Option Line Item)	30	EA		
3002	Option Year 3 - Optional Quantity: 5 Units; NMFS & WCPFC type-approved VMS units (EMTUs) IAW Statement of Need Firm Fixed Price Call Orders will be issued as FFP at any time during the duration of the Period of Performance. Period of Performance 07/01/2029 - 6/30/2030 (Option Line Item) Continued...	5	EA		

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
3003	Option Year 3 - Quantity: 30 Units; Shipping and Delivery of VMS units (EMTUs) IAW Statement of Need Firm Fixed Price Call Orders will be issued as FFP at any time during the duration of the Period of Performance. Delivery Dates: 07/01/2029 - 6/30/2030 (Option Line Item)				
4001	Option Year 4 - Quantity: 30 Units; NMFS & WCPFC type-approved VMS units (EMTUs) IAW Statement of Need Firm Fixed Price Call Orders will be issued as FFP at any time during the duration of the Period of Performance. Period of Performance 07/01/2030 - 6/30/2031 (Option Line Item)	30	EA		
4002	Option Year - Optional Quantity: 5 Units; NMFS & WCPFC type-approved VMS units (EMTUs) IAW Statement of Need Firm Fixed Price Call Orders will be issued as FFP at any time during the duration of the Period of Performance. Period of Performance 07/01/2030 - 6/30/2031 (Option Line Item)	5	EA		
4003	Option Year 4 - Quantity: 30 Units; Shipping and Delivery of VMS units (EMTUs) IAW Statement of Need Firm Fixed Price Call Orders will be issued as FFP at any time during the duration of the Period of Performance. Delivery Dates: 07/01/2030 - 6/30/2031 (Option Line Item)				

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Section 2 - Contract Clauses

CAR 1352.201-70 Contracting Officer's Authority. (MAR 2010)

CAR 1352.209-72 Restrictions against disclosure. (APR 2010)

CAR 1352.209-73 Compliance with the laws. (APR 2010)

CAR 1352.209-74 Organizational conflict of interest. (APR 2010)

RFO 52.203-6 Restrictions on Subcontractor Sales to the Government. (JUN 2020)

RFO 52.203-13 Contractor Code of Business Ethics and Conduct. (NOV 2021)

RFO 52.203-17 Contractor Employee Whistleblower Rights. (NOV 2023)

RFO 52.204-13 SYSTEM FOR AWARD MANAGEMENT-MAINTENANCE. (OCT 2018) (Deviation JAN 2026)

RFO 52.209-6 PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED. (JAN 2025) (Deviation JAN 2026)

RFO 52.209-9 UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS. (OCT 2018) (Deviation JAN 2026)

RFO 52.209-10 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS. (NOV 2015) (Deviation JAN 2026)

RFO 52.212-4 TERMS AND CONDITIONS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (NOV 2023) (Deviation JAN 2026)

RFO 52.217-9 Option To Extend the Term of the Contract. (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within fifteen (15) days before the end of the period of performance; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least thirty (30) days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five (5) years.

(End of clause)

RFO 52.219-6 NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE. (NOV 2020) (Deviation JAN 2026)

RFO 52.219-8 UTILIZATION OF SMALL BUSINESS CONCERNS. (JAN 2025) (Deviation JAN 2026)

RFO 52.219-14 LIMITATIONS ON SUBCONTRACTING. (OCT 2022) (Deviation JAN 2026)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition. Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability*. This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors*. An independent contractor shall be considered a subcontractor.

(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

[Contracting Officer check as appropriate.]

[] By the end of the base term of the contract and then by the end of each subsequent option period; or

[] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

RFO 52.222-18 Certification Regarding Knowledge of Child Labor for Listed End Products. (FEB 2021)*(a) Definition.*

Forced or indentured child labor means all work or service -

- (1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or
- (2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

(b) Listed end products. The following end product(s) being acquired under this solicitation is (are) included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, identified by their country of origin. There is a reasonable basis to believe that listed end products from the listed countries of origin may have been mined, produced, or manufactured by forced or indentured child labor.

Listed end product	Listed countries of origin
[]	[]
[]	[]
[]	[]

(c) Certification. The Government will not make award to an offeror unless the offeror, by checking the appropriate block, certifies to either paragraph (c)(1) or paragraph (c)(2) of this provision.

___ (1) The offeror will not supply any end product listed in paragraph (b) of this provision that was mined, produced, or manufactured in a corresponding country as listed for that end product.

___ (2) The offeror may supply an end product listed in paragraph (b) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture such end product. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(End of provision)

RFO 52.222-19 CHILD LABOR-COOPERATION WITH AUTHORITIES AND REMEDIES. (JAN 2025)
(Deviation JAN 2026)

RFO 52.222-35 EQUAL OPPORTUNITY FOR VETERANS. (JUN 2020) (Deviation JAN 2026)

RFO 52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES. (JUN 2020) (Deviation JAN 2026)

RFO 52.222-37 EMPLOYMENT REPORTS ON VETERANS. (JUN 2020) (Deviation JAN 2026)

RFO 52.222-50 COMBATING TRAFFICKING IN PERSONS. (OCT 2025) (Deviation JAN 2026)

RFO 52.225-1 BUY AMERICAN-SUPPLIES (OCT 2022) (Deviation JAN 2026)

RFO 52.225-2 Buy American Certificate. (OCT 2022)

RFO 52.232-33 Payment by Electronic Funds Transfer - System for Award Management. (OCT 2018)

RFO 52.232-39 Unenforceability of Unauthorized Obligations. (JUN 2013)

RFO 52.233-3 PROTEST AFTER AWARD. (AUG 1996) (Deviation JAN 2026)

RFO 52.233-4 APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM. (OCT 2004) (Deviation JAN 2026)

1 Full Language

STANDARD LANGUAGE

UTILIZATION OF FEDCONNECT® FOR CONTRACT ADMINISTRATION The Department of Commerce will utilize the FedConnect® web portal in administering this award. The contractor must be registered in FedConnect® and have access to the FedConnect® website located at <https://www.fedconnect.net/Fedconnect/>.

For assistance in registering or for other FedConnect® questions please call the FedConnect® Help Desk at (800) 899-6665 or email at support@fedconnect.net. There is no charge for registration in or use of FedConnect®.

GENERAL INFORMATION:

This full and open competitive single-award Blanket Purchase Agreement (BPA) is for the purchase of Vessel Monitoring System (VMS) Units in support of the National Marine Fisheries Service (NMFS), Office of Law Enforcement (OLE).

In accordance with Revolutionary FAR Overhaul (RFO) 12.201-1(e)(3)(iv) the following terms and conditions apply:

1. DESCRIPTION. The Contractor shall furnish the supplies identified in the attached Statement of Need (SON). The total estimated value of this BPA is estimated to be \$450,000.00. The overall NAICS Code will be 334511 (Search, Detection, Navigation, Guidance, Aeronautical and Nautical System and Instrument Manufacturing) with an applicable size standard of 1,250. The corresponding Product Service Code (PSC) is 7E21.

Individual call orders may contain work that corresponds to a different NAICS code; however, the NAICS code of 334511 shall apply to the life of this BPA and all issued call orders.

2. EXTENT OF OBLIGATION. The Government is obligated only to the extent of authorized purchases (call orders) actually made under the BPA.

3. PURCHASE LIMITATION. The dollar limitation of each individual call order under the BPA shall not exceed \$100,00.00.

4. AUTHORIZED INDIVIDUALS. The following individuals are authorized to purchase under the BPA at the dollar limitation identified in Number 3 above: Any warranted Contracting Officer from Western Acquisition Division (WAD) - NMFS Boulder Branch.

5. AUTHORIZED USE. The primary client of this BPA will be NMFS OLE; however, other offices or divisions within NMFS may also use this BPA if their requirements are covered herein. Use of the BPA by other NMFS offices or divisions is authorized subject to approval of NMFS OLE and the Administrative Contracting Officer.

6. DELIVERY AND SHIPMENT INSTRUCTIONS: In accordance with RFO RFO 12.201-1(e)(3)(iv)(E),

a. Each Call Order will identify the delivery and shipment instructions. Unless otherwise specified on the individual Call Order, delivery is required within six weeks of the award of the base year and each option year per the Statement of Need (SON) after the award for than authorized call order.

Delivery and Shipment Information:

OLE PID or its local designee at:

NOAA-IRC/NMFS/OLE
1845 Wasp Boulevard, Building 176
Honolulu, Hawaii 96818

Shipping and Insurance charges (pre-pay and add to invoice supported by freight bill) to Honolulu.

6. INVOICES. The BPA holder shall prepare and submit an invoice to the COR (to be identified at each call order) for approval with a copy to the order contracting officer. All invoices shall be submitted by the 15th day of the subsequent month, or as otherwise agreed upon between the Government and contractor. To constitute a proper invoice, the contractor's invoice shall be prepared in accordance with, and contain all elements specified in the RFO 52.212-4(g) and be submitted electronically through the U.S. Department of the Treasury's Invoice Processing Platform (the IPP) System. See the NOAA Acquisition Manual Clause 1330-52.232-71, ELECTRONIC SUBMISSION OF PAYMENT REQUESTS, for additional invoicing instructions. Proper invoices, with corresponding verification of services provided, will be paid within 30 days of receipt of the invoice, per the Prompt Payment Act.

7. ORDERING

A. Any supplies furnished under this BPA shall be ordered by the issuance of call orders by the authorized Contracting Officers identified above. Such orders may be issued from BPA start date through the BPA end date. Call order period of performance may extend past the ultimate end date of the BPA. Any order issued during the effective period of this BPA and not completed within that period shall be completed by the contractor within the time specified in the call order. The BPA shall govern the Contractor's and Government's rights and obligations with respect to that call order to

the same extent as if the call order were completed during the BPA's effective period; provided, that the contractor shall not be required to perform services under this BPA after 5 years after the BPA end date.

B. The ordering period of this BPA is from the start date (base year award date) through four (4) years thereafter.

C. All call orders are subject to the terms and conditions of this BPA. In the event of a conflict between a call order and this BPA, the BPA shall control.

D. Call orders will be issued by electronic commerce methods. The Government reserves the right to issue BPA calls unilaterally.

E. Acquisitions and Mergers: This BPA shall survive unto contractor, its successors, rights and assignments. The terms and conditions in this BPA shall survive the acquisition or merger of contractor by or with another entity. Contractor shall ensure these survivorship terms are included in any such merger or acquisition agreement, including a duty on the part of the surviving entity to abide by the terms of this BPA.

8. ORDER TYPE. Orders under this BPA may be awarded on a Firm Fixed Price (FFP) basis.

9. CALL ORDER PRICING.

A. A fixed escalation factor of 3.0% or other factor mutually agreed to by the parties may be applied annually to the BPA material/supply rates for call orders with a delivery schedule that exceeds the term of the BPA.

B. BPA CANCELLATION: This BPA may be unilaterally cancelled and ordering suspended by the Contracting Officer if the BPA holder fails to perform in accordance with the terms and conditions of this BPA, any call order established under this BPA, or if deemed in the best interest of the Government. If only a suspension is announced, the contractor shall adhere to this suspension by not accepting/processing call orders for any suspended item(s) and/or services.

C. BPA ANNUAL REVIEW: This BPA will be reviewed annually to ensure that it still represents the "best value" as described in FAR 12.201-1(e)(3)(v). This will include a review of prices paid under the BPA and other historical purchase data to determine: a) if the BPA still represents the best value.

CAR 1352.233-70 Agency protests. (APR 2010)

(a) An agency protest may be filed with either: (1) The contracting officer, or (2) at a level above the contracting officer, with the appropriate agency Protest Decision Authority. See 64 FR 16,651 (April 6, 1999).

(b) Agency protests filed with the Contracting Officer shall be sent to the following address:

Kristen Picariello
Contracting Officer, NOAA AGO
Western Acquisition Division
Acquisition and Grants Office
U.S. Department of Commerce, NOAA
325 Broadway, SOU6
Boulder, CO 80305
Phone: 720-230-6514
Email: kristen.picariello@noaa.gov

(c) Agency protests filed with the agency Protest Decision Authority shall be sent to the following address: Mr. Matthew Cogossi

Branch Chief, NOAA AGO
Western Acquisition Division
Acquisition and Grants Office
U.S. Department of Commerce, NOAA
325 Broadway, SOU6
Boulder, CO 80305
Phone: 303-578-2681
Email: matthew.cogossi@noaa.gov

(d) A complete copy of all agency protests, including all attachments, shall be served upon the Contract Law Division of the Office of the General Counsel within one day of filing a protest with either the Contracting Officer or the Protest Decision Authority.

(e) Service upon the Contract Law Division shall be made as follows: U.S. Department of Commerce, Office of the General Counsel, Chief, Contract Law Division, Room 5893, Herbert C. Hoover Building, 14th Street and Constitution Avenue, NW., Washington, DC 20230. FAX: (202) 482-5858.

(End of clause)

CAR 1352.246-70 Place of acceptance. (APR 2010)

(a) The Contracting Officer or the duly authorized representative will accept supplies and services to be provided under this contract.

(b) The place of acceptance will be:

NOAA-IRC/NMFS/OLE
1845 Wasp Boulevard, Building 176
Honolulu, Hawaii 96818

(End of clause)

CAR 1352.270-70 Period of performance. (APR 2010)

(a) The base period of performance of this contract is from 07/01/2026 through 06/30/2027. If an option is exercised, the period of performance shall be extended through the end of that option period.

(b) The option periods that may be exercised are as follows:

Option Year 1: 07/01/2027 - 06/30/2028

Option Year 2: 07/01/2028 - 06/30/2029

Option Year 3: 07/01/2029 - 06/30/2030

Option Year 4: 07/01/2030 - 06/30/2031

(c) The notice requirements for unilateral exercise of option periods are set out in FAR 52.217-9.

(End of clause)

NOAA Acquisition Manual 1330-52.203-71 NOTICE OF POST-GOVERNMENT EMPLOYMENT RESTRICTIONS (OCT 2015)

By submission of an offer in response to a NOAA solicitation or acceptance of a contract, the contractor acknowledges the restriction on current NOAA employees regarding contact with offerors regarding prospective employment and the corresponding obligations for contractors who engage them. The contractor further acknowledges that it has provided notice to former NOAA employees who will provide service to NOAA under the contract of post-Government employment restrictions that apply to them. Such restrictions include, but are not limited to, those set forth in:

(a) 41 U.S.C. § 2103 regarding contacts between a Federal employee working on a procurement and an offeror about prospective employment;

(b) 18 U.S.C. § 207 regarding the restrictions on former Federal employees having contact with a Federal agency on behalf of another person or entity concerning a specific party matter with which the former employee was involved as a Federal employee or for which the former Federal employee had official responsibility;

(c) 18 U.S.C. § 207 regarding the restrictions on former senior employees and senior political employees from having contact with his former Federal agency on behalf of another person or entity concerning any official matter; and

(d) 41 U.S.C. § 2104 regarding the restrictions on a former Federal employee involved in an acquisition over \$10,000,000 from accepting compensation from a contractor.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.208-70 SUBCONTRACTING WITH ABILITYONE NONPROFIT ORGANIZATIONS (DECEMBER 2022)

NOAA recognizes and appreciates the value and talent that people with disabilities bring to our workplaces. The Committee for Purchase From People Who Are Blind or Severely Disabled (AbilityOne

Program) is one of the United States' largest sources of employment for people who are blind or have significant disabilities, employing more than 40,000 individuals, including approximately 2,500 veterans. Approximately 450 nonprofit organizations employ these individuals who provide quality products and services to the Federal Government totaling nearly \$4 billion each year. Contracting with AbilityOne nonprofit organizations provides veterans and individuals who are blind or have significant disabilities more opportunities to work, lead independent lives, serve in their communities, and contribute to the strength of our Nation's economy.

This contract action is identified as including opportunities for subcontracting. The statutory obligation for Government agencies to satisfy their requirements for supplies or services available from the AbilityOne Program also applies when contractors purchase the supplies or services for Government use. For this contract action (contracting officer select one):

[Contracting Officer Select One] A subcontracting plan is required. The contractor shall include AbilityOne as a separate goal on the subcontracting plan. This line must be reported in the Electronic Subcontracting Reporting System (eSRS) under Large Business. AbilityOne will give Other Than Small Business credit on subcontracting plans.

Not required A subcontracting plan is not required. The contractor should consider subcontracting with AbilityOne nonprofit organizations to the maximum extent practicable and allowable consistent with other statutory and regulatory requirements applicable to the acquisition.

To engage with an AbilityOne Contractor (Non-Profit Agency) for subcontracting opportunities, the prime contractor should include the following information in an email to primecontractor@abilityone.org:

- a) Solicitation number
- b) Copy of the performance work statement or scope of work
- c) Identification of work that will be set aside for AbilityOne
- d) Estimated annual value of work for AbilityOne
- e) Prime contractor point of contact email address, phone number, name, and title

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.232-71 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (FEB 2023)

The Contractor must submit payment requests electronically through the U.S. Department of the Treasury's Invoice Processing Platform System (IPP). The Contractor must use the IPP website to register, access, and submit payment requests. The IPP website address is <https://www.ipp.gov>.

"Payment request" means any request for contract financing payment or invoice payment to the Contractor. To be considered proper, invoices must be prepared in accordance with, and contain all elements specified in, the contract payment clause (e.g., FAR 52.212-4(g), FAR 52.232-25(a)(3), FAR 52.232-26(a)(2), FAR 52.232-27(a)(2)).

The Contractor must include the following documents as attachments to payment requests submitted through the IPP: [Contracting Officer list required invoice attachment(s); none if left blank].

If the Contractor is unable to comply with the requirement to submit payment requests through the IPP due to a threat to national security; a matter of unusual or compelling urgency; or because the political, financial, or communications infrastructure of a foreign country does not support access to the IPP, the Contractor must request an exception in writing. Contact the Contracting Officer for more information about requesting an exception.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.237-70 CONTRACTOR COMMUNICATIONS

(a) A contractor employee shall be identified both by the individual's name and the contractor's name when:

- Included in NOAA's locator, and
- When submitting any type of electronic correspondence to any NOAA employee or stakeholder.

(b) Any written correspondence from a contractor or any contractor employee shall be printed on company/organization letterhead or otherwise clearly identify the sender as an employee of the company or organization and shall identify the contract number.

(c) Contractors and/or contractor employees shall clearly identify themselves as such in any verbal communications, whether in informal discussion or a formal meeting.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.243-70 REQUESTS FOR EQUITABLE ADJUSTMENT (OCT 2017)

(a) The amount of any request for equitable adjustment to contract terms shall accurately reflect the contract adjustment for which the contractor believes the Government is liable. The request shall include only costs for performing the change. All indirect costs included in the request shall be properly allocable to the change in accordance with applicable acquisition regulations.

(b) Any request for equitable adjustment to contract terms that exceeds the simplified acquisition threshold shall bear, at the time of submission, the following certificate executed by an individual authorized to certify the request on behalf of the contractor:

I certify that the request is made in good faith, and that the supporting data are accurate and complete to the best of my knowledge and belief.

(Official's Name)

(Title)

(c) The certification in paragraph (b) of this solicitation and contract language requires full disclosure of all relevant facts, including:

1. Certified cost or pricing data, if required, in accordance with subsection 15.403-4 of the Federal Acquisition Regulation (FAR); and
2. Data other than certified cost or pricing data, in accordance with subsection 15.403-3 of the FAR, including actual cost data and data to support any estimated costs, even if certified cost or pricing data are not required.

(d) The certification requirement in paragraph (b) of this solicitation and contract language does not apply to:

1. Requests for routine contract payments; for example, requests for payment for accepted supplies and services, routine vouchers under a cost-reimbursement type contract, or progress payment invoices; or
2. Final adjustments under an incentive provision of the contract.

(End of solicitation and contract language)

RFO 52.217-7 Option for Increased Quantity - Separately Priced Line Item. (MAR 1989)

The Government may require the delivery of the numbered line item, identified in the Schedule as an option item, in the quantity and at the price stated in the Schedule. The Contracting Officer may exercise the option by written notice to the Contractor within 30 Days. Delivery of added items shall continue at the same rate that like items are called for under the contract, unless the parties otherwise agree.

(End of clause)

RFO 52.217-8 Option To Extend Services. (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within thirty (30) calendar days before the end of the period of performance. Inclusion of FAR clause 52.217-8, Option to Extend Services, in the solicitation and resultant contract is for use by the Government as outlined at FAR 37.111, Extension of Services. The option will be exercised as needed at any time during the life of the contract using the rates applicable at the time of exercise.

(End of clause)

RFO 52.219-13 Notice of Set-Aside of Orders. (MAR 2020)

(a) The Contracting Officer may set aside orders for the small business concerns identified in 19.000(a)(3).

(b) The Contracting Officer will give notice of the order or orders, if any, to be set aside for small business concerns identified in 19.000(a)(3) and the applicable small business program. This

notice, and its restrictions, will apply only to the specific orders that have been set aside for any of the small business concerns identified in 19.000(a)(3).

(End of clause)

RFO 52.219-28 POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION. (JAN 2025) (Deviation JAN 2026)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it [] is, [] is not a small business concern under NAICS Code [] assigned to contract number [].

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.]* The Contractor represents that it [] is, [] is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it [] is, [] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it [] is, [] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it [] is, [] is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that It [] is, [] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [Contractor to sign and date and insert authorized signer's name and title. _____]

(End of clause)

RFO 52.252-2 Clauses Incorporated by Reference. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

(FAR) <https://acquisition.gov/browse/index/far>

(CAR) <https://www.acquisition.gov/car>

(End of clause)

RFO 52.252-6 Authorized Deviations in Clauses. (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the clause.

(b) The use in this solicitation or contract of any Commerce Acquisition Regulation (48 CFR Chapter 13) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of clause)

Section 3 - Solicitation Provisions

CAR 1352.233-71 GAO and Court of Federal Claims protests. (APR 2010)

RFO 52.204-7 SYSTEM FOR AWARD MANAGEMENT-REGISTRATION. (NOV 2024) (Deviation JAN 2026)

RFO 52.217-5 EVALUATION OF OPTIONS. (JUL 1990) (Deviation JAN 2026)

RFO 52.246-16 Responsibility for Supplies. (APR 1984)

RFO 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS. (OCT 2018) (Deviation JAN 2026)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

- (1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

**RFO 52.212-1 INSTRUCTIONS TO OFFERORS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES.
(SEP 2023) (Deviation JAN 2026)**

This provision has been tailored to this procurement.

This is a combined synopsis/solicitation for commercial products prepared in accordance with RFO Part 12. This announcement constitutes the only solicitation. Quotes are being requested and a separate written solicitation will not be issued. Solicitation number 1305M326Q0093 is issued as a Request for Quote (RFQ) for the purchase of Vessel Monitoring System (VMS) Units for the Office of Law Enforcement (OLE).

This acquisition for a Blanket Purchase Agreement (BPA) is a one hundred percent set-aside for small business concerns. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

This is a solicitation for commercial items prepared in accordance with the format at Revolutionary FAR Overhaul (RFO) Part 12, as supplemented with additional information included in this notice, and is being conducted pursuant to RFO Part 12- Acquisition of Commercial Products and Commercial Services.

GENERAL INFORMATION:

The National Oceanic and Atmospheric Administration (NOAA), Western Acquisition Division, on behalf of the National Marine Fisheries Service (NMFS), OLE is soliciting quotes for VMS transceiver hardware

(units).

1. The quote shall be clear, concise, and include sufficient detail for effective evaluation and for substantiating the validity of stated claims in the quote. The quote should not simply rephrase or restate the Government's requirements, but rather shall provide convincing rationale to address how the quoter intends to meet the requirements of the Statement of Need (SON) and attachments. The Government anticipates that this BPA will be awarded based upon adequate price competition. Should this not be the case, the Contracting Officer reserves the right to require the quoter to submit other than certified cost or pricing data in order to determine pricing to be fair and reasonable.

2. This Request for Quote (RFQ) is Total Small Business Set-Aside. The associated North American Industry Classification System (NAICS) code is 334511, Search, Detection, Navigation, Guidance, Aeronautical, and Nautical System and Instrument Manufacturing.

3. The Government anticipates awarding a Firm-Fixed-Price BPA and Single Award Call Order with a Period of Performance of July 1, 2026 through June 30, 2031, and initial delivery date of 6 weeks After Receipt of Order (ARO).

Quotation Submission Instructions

1. Interested firms are required to submit quotes no later than Tuesday, May 5th at 5:00 p.m. Eastern Time and must be emailed to the Contracting Officer (CO), Kristen Picariello at kristen.picariello@noaa.gov and to the Contracting Specialist (CS) Monica Cowdrey at monica.cowdrey@noaa.gov. There will be no exceptions to the time and date on which responses are due, unless determined otherwise by the Government.

Any questions related to this RFQ shall be submitted by email to the CO, Kristen Picariello at kristen.picariello@noaa.gov, and to the CS Monica Cowdrey at monica.cowdrey@noaa.gov no later than Thursday, April 23rd at 2:00 p.m. Eastern Time. Questions must be written clearly so that the Government can understand the Quoter's issues or concerns with the referenced area of the Solicitation. Answers will be provided to all eligible vendors as soon as practicable. Phone inquiries are not permitted.

FAR 52.212-1(b) Period for acceptance of offers is updated to reflect that the offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers.

2. The following instructions are for the preparation and submission of quotes. The purpose of this section is to establish requirements for the format and content of quotes so that quotes contain all essential information and can be evaluated equitably. Quoters are instructed to read the entire RFQ document, including all attachments, prior to submitting questions and/or preparing your quote. Omission of any information from the submission requirements may result in rejection of the quote.

3. Quote Preparation: The cover should indicate the following:

Title of the Quote
Volume Number (I or II)

Quote Category (Technical Quote, Price Quote)

Request for Quote (RFQ) Number

Name and address of Quoter, Cage Code, UEI, Business Size and applicable TAX I.D. Number (TIN)

Quote validity period of 60 days from date of quote submission

Quote shall be submitted electronically to Monica Cowdrey at monica.cowdrey@noaa.gov and to Kristen Picariello at kristen.picariello@noaa.gov.

a. Quote Format:

To be considered for this opportunity, all quotes shall be:

1. Submitted in either Microsoft Word, Excel spreadsheet, or Adobe PDF.
2. Quote must include price(s), point of contact (name and phone number), business size, CAGE Code, and payment terms.
3. Shipping Terms: FOB Destination

b. Arrangement of Quote:

(1) Volume I- Technical Acceptability and Past Performance

(a) Volume I, Technical Acceptability and Past Performance Quote, consists of the Quoter's quote delineating its capabilities and how it intends to perform contract requirements regarding the technical specifications listed in the SON and MUST meet the Special Requirements (specs) section. Please provide past performance examples (no more than three years) of kit production and punctual shipment and delivery. The Technical quote shall be evaluated in accordance with RFO 52.212-2.

(b) In order for the technical acceptability quote to be evaluated strictly on the merit of the material submitted, no contractual price information is to be included in Volume I.

(2) Volume II- Price Reasonableness

The Quoter shall provide pricing for all Contract Line Items on the Form SF1449. Quoters are required to provide a unit price for all items.

NOTE: Unit prices left blank or annotated with something other than a dollar figure shall be considered UNACCEPTABLE and the Quote may be rejected without any further consideration.

The Signed Standard Form 1449, with pricing shall be submitted.

(End of provision)

**RFO 52.212-2 EVALUATION-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (NOV 2021)
(Deviation JAN 2026)**

This provision has been tailored to this procurement.

The Government intends to award a Single Firm-Fixed-Price (FFP) Blanket Purchase Agreement (BPA) as a result of this solicitation in accordance with RFO Part 12. Award will be made to the quoter whose quote is most advantageous to the Government under the selection criteria set forth in this solicitation. The Government intends to evaluate quotes and award a BPA and award the first call order based on

initial quotes. Therefore, the quote should contain the quoter's best terms from a Technical Acceptability and Price standpoint. The Government reserves the right to award a BPA to other than the lowest priced quoter, award a contract without exchanges, or award a contract after exchanges, whichever is in the best interest of the Government. The evaluation will consider the Technical Acceptability to be significantly more important than Price.

The evaluation factors will measure the Government's confidence that the quoter understands the requirements, offers a sound approach, and will be successful in performing the purchase order. The evaluation of each factor (except price) will be done holistically with a rating scale of "high confidence", "some confidence", and "low confidence" (see Table 1 below):

Table 1 - Technical Acceptability Confidence Ratings

Rating	Definition
High Confidence	The Government has high confidence that the Quoter understand the requirement, proposes a sound approach, and will be successful in performing the contract with little to no Government intervention.
Some Confidence	The Government has some confidence that the Quoter understand the requirement, proposes a sound approach, and will be successful in performing the contract with some Government intervention.
Low Confidence	The Government has low confidence that the Quoter understand the requirement, proposes a sound approach, and will be successful in performing the contract even with Government intervention.

The Government reserves the right NOT to award a BPA depending on the quality of the quote(s) submitted. Furthermore, the Government may waive informalities and minor irregularities or omissions in quotes received.

All Technical Acceptability factors are listed below and are of equal importance:

VOLUME I: TECHNICAL ACCEPTABILITY

A. Technical Acceptability: Each quote must clearly indicate the capability of the vendor to meet all specifications and requirements in the Statement of Need (SON). Page limit is five pages.

1. Vendors must provide a detailed (unpriced) capabilities statement for review and acceptance by the Technical POC. The technical capability portion of the quote should include (if applicable):

- a. Lead time for each item.
- b. Specifications: Full Specifications of the VMS unit(s) being quoted, including technical specifications and how all technical specifications and requirements will be met within the SON.
- c. Complete list of supplies per the SON.

VOLUME II: PRICE REASONABLENESS

Pricing shall be complete and in accordance with RFO 52.212-1 Provision Instructions to Offerors — Commercial Products and Commercial Services and address pricing for all CLINs. A quote that does not

fully address pricing for all CLINs will not be evaluated for award. The quoted prices will be evaluated but not scored. The Government will evaluate the price quote for completeness and reasonableness in relation to the RFQ requirements. A price/cost realism analysis will not be performed (i.e. whether the overall price is too low). Quoted prices must be entirely compatible with the Technical Solution.

Except when it is determined not to be in the Government's best interests, the Government will evaluate offers or quotations for award purposes by adding the total price for all options to the total price for the basic requirement to determine the total evaluated price. The Government will extend out the unit price from the last Option Year. This includes options under RFO clause 52.217-8, Option to Extend Services, which applies to this solicitation. Evaluation of options will not obligate the Government to exercise the option(s). The Government will evaluate the options under RFO clause 52.217-8 by dividing the total price for Option Year Four (IV) in half and adding to the total price. The price evaluation will determine whether proposed prices are fair and reasonable.

A. Price Reasonableness: Each quote must breakdown pricing on a per unit basis, to include any quantity discounts provided. This shall be a separate document from the technical capability.

1. Vendors shall provide one of the following upon request from the Government to determine price fair and reasonableness:

- a. Two (2) invoices for the same or similar parts sold to customers within the last five years
- b. Published price list or catalog
- c. Contract numbers for the same or similar items sold to Government agencies

Additional information may be requested in order for the Government to make a fair and reasonable price determination.

(End of provision)

RFO 52.216-1 TYPE OF CONTRACT. (APR 1984) (Deviation JAN 2026)

The Government contemplates award of a Firm Fixed Price (FFP) Blanket Purchase Agreement contract resulting from this solicitation.

(End of provision)

RFO 52.233-2 SERVICE OF PROTEST. (SEP 2006) (Deviation JAN 2026)

- (a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Kristen Picariello, Contracting Officer, NOAA AGO, Western Acquisition Division, Acquisition and Grants Office, U.S. Department of Commerce, NOAA, 325 Broadway,

SOU6,
Boulder, CO 80305, Email: kristen.picariello@noaa.gov.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

RFO 52.252-1 Solicitation Provisions Incorporated by Reference. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): (FAR) - <https://www.acquisition.gov/browse/index/far> (CAR) - <https://www.acquisition.gov/car>

(End of provision)

RFO 52.252-5 Authorized Deviations in Provisions. (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR chapter 1) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the provision.

(b) The use in this solicitation of any Commerce Acquisition Regulation (48 CFR chapter 13) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of provision)

Section 4 - Contract Documents, Exhibits, or Attachments**List of Attachments**

Attachment Number	Title
1	Statement of Need PID VMS Hardware Procurement Final

Deliverables Schedule

Deliverable	Due Date/First Instance Due	Recurring